

****SEE ALSO Newsletter of September 11, 2023****

[doc. web n. 9920664]

Provision of July 18, 2023

Register of provisions

n. 314 of July 18, 2023

****THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA****

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European
Parliament and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to the
processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, "Code regarding the protection of
personal data," as
amended by Legislative Decree No. 101 of August 10, 2018, containing
provisions for the adaptation of the national
legal system to the Regulation (hereinafter "Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published
in the Official Gazette No. 106 of May 8, 2019 and on www.gpdp.it,
doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations of the Office made by
the Secretary General pursuant to Article 15 of
Guarantor Regulation No. 1/2000 on the organization
and functioning of the office of the Guarantor for the
protection of personal data, on www.gpdp.it, doc.
web n. 1098801;

REPORTING Dr. Agostino Ghiglia;

1. ****Premise****

With a report submitted to the Authority, a
citizen of the Municipality of Modica (hereinafter, the
Municipality) complained about the violation of the regulations
on the protection of personal data occurring
through the video surveillance system placed near
the bins designated for waste collection. From the collected
investigative elements, it emerged that the Municipality
has entrusted Cat s.r.l. (hereinafter, the company) with the
supply, management, and maintenance of the aforementioned

video devices.

2. ****The Investigative Activity****

In response to a request for information from the Authority (prot. n. XX of XX), the Municipality, with note prot. n. XX of XX, declared, in particular that “in order to combat the widespread phenomenon of waste abandonment and the improper disposal of municipal solid waste, through its determinations [...] it has entrusted the task [to] Cat s.r.l.[...], for the purchase, installation, and maintenance of fixed cameras, and collection and analysis of the footage related to environmental violations, both of an administrative and criminal nature” and that it has “appointed auxiliaries of the Judicial Police” the company “for the collection, analysis, and delivery of the aforementioned footage [...]”.

In response to a further request for information from the Authority (note prot. XX of XX), the Municipality, with note prot. n. XX of XX, stated in particular that:

- “Cat srl” in the context of the video surveillance activities, has acted as an auxiliary of the judicial police [...] appointed by the Command of the Local Police of this Municipality. The company “Cat srl” had the task as per the agreement to carry out a preliminary analysis and selection of the footage in which a violation or crime was evident. The agreement signed is the appointment report from the Command of the Local Police [... of XX]”;
- “Cat srl” has [...] started to provide its services to this Municipality for the management of video surveillance to combat the illegal/uncontrolled abandonment of waste and the degradation of the territory [... on] XX”.

On this point, in response to a request for information from the Authority (note prot. XX of XX), the company (pec of XX) declared:

- “For the first period, after the installation of the cameras (attached determination) (used for combating waste abandonment, our company only had the mandate of [...] Moving the cameras to the sites indicated by the head of the ecology service [...] Collection and physical replacement of the memory cards which were then delivered by the person indicated to me by the ecology service of the municipal police”;
- “In the subsequent period, due to the lack of staff, our employee was given the appointment of auxiliary of the Judicial Police to be able to view and extract the images contained in the Micro SD [...]”;
- “The service did not start simultaneously

with the installation of the cameras because, as reported by the head of the ecology sector, there was no regulation and no responsible person for data processing. Following the appointment of Judicial Police, we began with the viewing service. The images were recorded on optical media and delivered [...] to the Judicial Police officer [...].

While taking into account the aforementioned circumstances in which the company operated, it emerged from the documents that from the date on which the company took over the management of the video devices in question (XX), until the expiration of the assignment (XX), the processing of personal data of the interested parties occurred without the role of the company, as the data processor, being appropriately defined in accordance with the provisions of Article 28 of the Regulation (or, for the period prior to May 25, 2018, pursuant to Article 29 of Legislative Decree No. 196 of June 30, 2003, "Code regarding the protection of personal data" – hereinafter, the "Code" – in the text prior to the amendments referred to in Legislative Decree No. 101/2018 and in force in August 2017). Therefore, since the company and the Municipality did not enter into an agreement to define the role assumed for the purposes of processing personal data during that period and no other conditions were identified by the company that could legitimize the processing of the data in question, the Office, with note of XX (prot. no. XX), based on the elements acquired, notified the company, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5, paragraph 1, letter a), and 6 of the Regulation (in conjunction with Article 2 ter of the Code), for having carried out the processing of personal data in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of an appropriate legal basis. With the same note, the company was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981). In this regard, it is noted that no defensive writings were received from the company.

3. Outcome of the investigative activity

Pursuant to the regulations regarding the protection of personal data, the processing of personal data carried out by public entities (such as the Municipality of Modica) is lawful only if necessary "to comply with a legal obligation to which the data controller is subject" or "for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller" [Article 6, paragraph 1, letters c) and e)]. The management of municipal solid waste falls within the institutional activities entrusted to local authorities. Even in the presence of a condition of lawfulness, the data controller is nonetheless required to respect the principles regarding the protection of data (Article 5 of the Regulation).

3.1 The processing carried out by the company

Pursuant to Article 28 of the Regulation, the data controller (as mentioned, the Municipality of Modica) may entrust processing to third parties that provide sufficient guarantees regarding the implementation of appropriate technical and organizational measures to ensure that the processing is compliant with the regulations regarding the protection of personal data ("data processors"). The relationship between the data controller and the processor is governed by a contract or other legal act, executed in writing, which, in addition to mutually binding the two parties, allows the data controller to issue instructions to the processor and specifies in detail the subject matter governed, the duration, the nature and purposes of the processing, the type of personal data and categories of data subjects, the obligations and rights of the data controller. The Data Processor is therefore authorized to process the data of the data subjects "only on documented instructions from the data controller" (Article 28, paragraphs 1 and

3 of the Regulation). These principles also applied with regard to the legal framework preceding the Regulation, as clarified by the Court of Cassation (see Cass., Section I Civil, order No. 21234 of July 23, 2021, although in relation to the processing of personal data in a different context). In confirming a measure of the Authority, the Court, for the aspects relevant to the case at hand, specified that “the agreement between the 'data controller' and the 'processor' is legislatively provided for and is not intended solely to regulate the inter partes relationships, with merely internal relevance, in terms of any contractual non-compliance [...], because the regulations therein established by the 'data controller', regarding the purposes and methods of processing, rise to a necessary element for the qualification of 'processor' in the specific case.” As emerged during the investigation, the processing of the data in question, carried out by the company on behalf of the Municipality, was initiated without the role being regulated pursuant to Article 28 of the Regulation, as the act of appointing the company as “auxiliary of the Public Prosecutor” does not meet the characteristics of the legal act intended to regulate the relationship between the data controller and the processor, as it does not contain the elements required by Article 28 of the Regulation concerning the processing of personal data. Since the company was not identified as the data processor and no specific conditions were indicated by the company that legitimized the processing of personal data, it must be concluded that the processing was carried out in the absence of lawful conditions and therefore in violation of Articles 5, paragraph 1, letter a) and 6 of the Regulation (in conjunction with Article 2 ter of the Code), as previously clarified by the Authority regarding similar cases (see measure No. 161 of September 17, 2020, web doc. 9461321; measure No. 281 of December 17, 2020, web doc 9525315; measure No. 292 of July 22, 2021, web doc. 9698558; measure No. 269 of July 21, 2022, web doc. 9813326; measure No. 293 of July 22, 2021, web doc. 9698597; measure No. 269 of July 21, 2022, web doc. 9813326; measure No. 293 of July 22, 2021, web doc. 9698597; Guidelines “on the concepts of data controller and data processor in the GDPR” No. 07/2020, particularly note 35).

4. Conclusions

In light of the evaluations mentioned above, it is noted that the statements made by the company during the investigation – the truthfulness of which may be subject to accountability pursuant to Article 168 of the Code – although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to permit the archiving of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor No. 1/2019 apply.

From the checks carried out based on the elements acquired, including the documentation sent, as well as from subsequent evaluations, the non-compliance of the processing carried out by the company on behalf of the Municipality of Modica concerning the management of the video surveillance system has been established.

Although the processing was initiated by the company prior to the entry into force of the Regulation for the purpose of identifying the applicable legislation, from a temporal perspective, it should be noted that, based on the principle of legality set forth in Article 1, paragraph 2, of Law No. 689/1981, “Laws that provide for administrative sanctions apply only in the cases and times considered therein.” This implies the necessity to take into account the provisions in force at the time of the committed violation; in the case at hand, given the permanent nature of the contested unlawful act, this moment must be identified at the time of cessation of the unlawful conduct, which occurred in XX and thus during the full validity of the provisions of the Regulation and the Code (as amended by Legislative Decree No. 101/2018).

Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the company is noted, as it occurred in the absence of a condition of lawfulness and, therefore, in a manner not compliant with the principle of “lawfulness, fairness, and transparency,” in violation of Article 5, paragraph 1, letter a) of the Regulation and Article 6 of the Regulation (in conjunction with Article 2-ter of the Code).

The violation of the aforementioned provisions renders the administrative sanction applicable pursuant to Articles 58, paragraph 2, letter i), and 83, paragraphs 4 and 5, of the same Regulation, as also

referenced by Article 166, paragraph 3, of the Code.

5. Adoption of the injunction order for the application of the monetary administrative sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i), and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose a monetary administrative sanction pursuant to Article 83, in addition to [other] corrective measures [referred to in this paragraph], or in lieu of such measures, depending on the circumstances of each individual case,” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019).

In this regard, in the specific case, the violation of the cited provisions is subject to the application of the same monetary administrative sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned monetary administrative sanction imposed, depending on the circumstances of each individual case, must be determined in amount, taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

For the purposes of applying the sanction, it has been considered that the processing concerned the data potentially of all residents of the Municipality of Modica (approximately 53,000 affected) and non-residents (the extent of which is not quantifiable), in violation of the principle of “lawfulness, fairness, and transparency” as per Article 5, paragraph 1, letter a) of the Regulation and in the absence of a condition of lawfulness in violation of Article 6 of the Regulation (in conjunction with Article 2-ter of the Code).

Conversely, the non-intentional nature of the violation as well as the absence of previous violations against the company are taken into account.

In light of the aforementioned elements, evaluated as a whole, it is deemed necessary to determine pursuant to Article 83, paragraphs 2 and 3, of the Regulation the amount of the monetary sanction, provided for by Article 83, paragraph 5, letter a) of the Regulation, in the amount of €10,000 for the violation of Articles 5 and 6 of the Regulation (in conjunction with Article 2-ter of the Code) as a monetary administrative sanction deemed effective, proportionate, and dissuasive pursuant to Article 83, paragraph 1, of the same Regulation.

It is considered that the accessory sanction of publication on the Guarantor's website of this provision, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Guarantor No. 1/2019, should be applied.

Finally, it is believed that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

pursuant to Article 57, paragraph 1, letters a) and f) of the Regulation, notes the unlawfulness of the processing carried out by Cat s.r.l. for the violation of Articles 5 and 6 of the Regulation, in conjunction with Article 2-ter of the Code, in the terms set forth in the reasoning.

ORDERS

Cat s.r.l., with registered office in Ragusa, via dott. Corrado di Quattro – 97100 – VAT No. 01406720886 - to pay the sum of €10,000 as a sanction.

****Administrative Financial Penalty for the Violations Stated in the Motivation; It is Represented that the Offender, Pursuant to Article 166, Paragraph 8, of the Code, Has the Right to Settle the Dispute by Payment, Within 30 Days, of an Amount Equal to Half of the Imposed Sanction;****

****ORDERS****

Cat s.r.l. to pay the sum of €10,000 – in case of failure to settle the dispute pursuant to Article 166,

Paragraph 8, of the Code, according to the methods indicated in the attachment, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

****PROVIDES****

for the publication of this provision on the website of the Authority, pursuant to Article 166, Paragraph 7, of the Code and Article 16, Paragraph 1, of the Regulation of the Authority No. 1/2019;
for the annotation of this provision in the internal register of the Authority, as provided for by Article 57, Paragraph 1, Letter u), of the Regulation, of the violations and the measures adopted in accordance with Article 58, Paragraph 2, of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, against this provision it is possible to file an appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 18, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei